



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 31ST DAY OF JANUARY, 2026

PRESENT

THE HON'BLE MR. JUSTICE D K SINGH

AND

THE HON'BLE MR. JUSTICE C.M. POONACHA

WRIT APPEAL NO. 1924 OF 2025 (LR-SEC 48)

BETWEEN:

V RANGANATH
SINCE DEAD BY LRs

1. R. PRABHAKAR
S/O LATE V. RANGANATH,
AGED ABOUT 56 YEARS,
R/AT NO.2, 4TH A CROSS,
BTM LAYOUT, TANK SHORE ROAD,
BENGALURU 560 076
2. R. VENKATESH
S/O LATE V. RANGANATH,
AGED ABOUT 60 YEARS,
R/AT NO.2, 4TH A CROSS,
BTM LAYOUT, TANK SHORE ROAD,
BENGALURU - 560 076
3. R. VIJAYKUMAR
S/O LATE V. RANGANATH,
AGED ABOUT 65 YEARS,
R/AT NO.2, 4TH A CROSS,
BTM LAYOUT, TANK SHORE ROAD,
BENGALURU 560 076.
4. R. CHANDRASHEKAR
S/O LATE V. RANGANATH,
AGED ABOUT 63 YEARS,





**NC: 2026:KHC:5500-DB
WA No. 1924 of 2025**

R/AT NO.2, 4TH A CROSS,
BTM LAYOUT, TANK SHORE ROAD,
BENGALURU 560 076.

5. R. KOUSALYA
D/O LATE V. RANGANATH,
AGED ABOUT 59 YEARS,
R/AT NO.2, 4TH A CROSS,
BTM LAYOUT, TANK SHORE ROAD,
BENGALURU 560 076.
6. R. SRIDHAR
S/O LATE V. RANGANATH,
AGED ABOUT 55 YEARS,
R/AT NO.2, 4TH A CROSS,
BTM LAYOUT, TANK SHORE ROAD,
BENGALURU 560 076.
7. R. ULAGANATHAN
S/O LATE V. RANGANATH,
AGED ABOUT 49 YEARS,
R/AT NO.2, 4TH A CROSS,
BTM LAYOUT, TANK SHORE ROAD,
BENGALURU 560 076.

.. APPELLANTS

(BY SMT. S. AISHWARYA, ADV. FOR
SRI P.N. RAJESWARA., ADVOCATE)

AND:

D V NARAYANA REDDY
SINCE DEAD BY LRS

1. GOWRAMMA
W/O LATE D.V. NARAYANA REDDY,
SINCE DEAD BY LRS. R.2 TO 10.
2. SMT. NAGARATHNAMMA
D/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 62 YEARS,



R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.

3. SMT. ANASUYAMMA
W/O LATE VENUGOPALA REDDY,
AGED ABOUT 57 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
4. SRI. D.V. DHANAPAL REDDY,
S/O LATE VENUGOPALA REDDY,
AGED ABOUT 36 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
5. SRI. D.V.VISHWANATHA REDDY
S/O LATE VENUGOPALA REDDY,
AGED ABOUT 35 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
6. SMT. BHAGYALAKSHMI
D/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 57 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
7. SRINIVASA REDDY
S/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 55 YEARS,



R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.

8. SMT. SUDHA
D/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 53 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
9. CHANDRASHEKAR REDDY
S/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 48 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
10. SMT. JALA
D/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 47 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
11. VENKATA REDDY
S/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 33 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.
12. SMT. SHILPA
D/O LATE D.V. NARAYANA REDDY,
AGED ABOUT 42 YEARS,



R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.

13. SMT. GIRIJA
D/O LATE D.V. NARAYANA REDDY,
W/O LATE ANANDA REDDY
AGED ABOUT 43 YEARS,
R/AT CHIKKABELLANDUR VILLAGE,
SARJAPURA ROAD,
BENGALURU EAST TALUK,
BENGALURU 560 035.

14. THE LAND TRIBUNAL
BENGALURU EAST TALUK,
BENGALURU,
BY ITS CHAIRMAN.

.. RESPONDENTS

(BY SRI THARANATH SHETTY, ADV. FOR R.3 TO R5
SRI VIJAYASHEKARA GOWDA, ADV.
FOR R.2, R6, R7, R10, R11-13;
SRI C.E.SHANKAR, ADV. FOR R.8 & R9
SRI MOHAMMED JAFFER SHAH, AGA FOR R.14)

THIS WRIT APPEAL IS FILED UNDER SECTION 4 OF THE
KARNATAKA HIGH COURT ACT PRAYING TO SET ASIDE THE ORDER
DATED 18/11/2025 PASSED IN WP NO.44618/2012 PASSED BY THE
LEARNED SINGLE JUDGE OF THIS COURT AND CONSEQUENTLY,
ALLOW PETITION IN WP NO.44618/2012 AND PASS SUCH OTHER
SUITABLE ORDERS.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY, JUDGMENT
WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE D K SINGH
and
HON'BLE MR. JUSTICE C.M. POONACHA



ORAL JUDGMENT

(PER: HON'BLE MR. JUSTICE D K SINGH)

Sri Vijayashekara Gowda, learned counsel for respondent Nos.2,6,7, 10 to 13 has filed a memo stating that respondent No.1 is dead and her legal heirs are already on record as respondent Nos.2 to 10. Necessary amendment to be carried out in the cause title of the writ appeal.

2. The present appeal is filed impugning the judgment and order dated 18.11.2025 passed by the learned Single Judge in W.P.No.44618/2012. The present case has a chequered history and it would be apt to take note of the earlier proceedings between the parties.

3. The parties are referred to as per their ranking before the writ Court for the sake of convenience.

4. The petitioners had filed a writ petition for quashing of the order dated 09.10.2012 passed by the Land Tribunal in LRF.CR.3172/1974-75, whereby the Land Tribunal had granted occupancy right in favour of



respondent No.1- D.V.Narayan Reddy in respect of 3 acres 10 guntas land in Survey No.24/2 and 3 acres 10 guntas land in Survey No.24/3 (totally 6 acres 20 guntas) situate at Chikka Bellandur Village, Varthur Hobli, Bengalore East Taluk.

5. The father of petitioner No.1 had purchased the subject land from the owner-Ramareddy vide registered sale deed dated 28.07.1971 and the mutation in the name of father of the petitioner-V.Ranganath as Kathedar also took place.

6. Respondent No.1 had filed an application under Form No.7 for grant of occupancy right under Section 45 of the Karnataka Land Reform Act, 1961 (hereinafter referred to as 'the Act of 1961'). The Land Tribunal vide order dated 31.01.1981 granted the occupancy certificate confirming the occupancy rights in respect of the subject lands in favour of respondent No.1. Aggrieved by the said order passed by the Land Tribunal dated 31.01.1981 petitioner No.1 preferred W.P.No.28635/1991 before this



Court. This Court set aside the order and remanded the matter back to the Land Tribunal for fresh consideration. After remand, the Land Tribunal conducted proceedings and rejected the claim of respondent No.1 for grant of occupancy right in his favour vide order dated 10.01.2003.

7. Challenging the said order dated 10.01.2003 passed by the Land Tribunal on remand, respondent No.1 filed W.P.No.17898/2003. This Court vide the order dated 05.02.2009 set aside the order passed by the Land Tribunal dated 10.01.2003 refusing to grant the occupancy certificate in favour of respondent No.1 and remanded the matter back for fresh consideration in accordance with law.

8. The Tribunal on remand has confirmed the occupancy right in respect of the land in question in favour of respondent No.1 by the impugned order dated 09.10.2012. The said order came to be challenged by the petitioner before this Court.



9. The Land Tribunal in its order has considered the revenue entry particularly column No.12(2) of RTC for the years - 1970-71 to 1974-75. In the aforesaid revenue entries, the name of father of the petitioner is mentioned as the owner of the land whereas the name of respondent No.1 is clearly mentioned as cultivator. The witnesses-PW2 and PW3 in their evidence categorically admitted that respondent No.1 was a tenant under petitioner No.1 in respect of the said land for the relevant period.

10. What is relevant while considering the application-Form No.7 under Section 45 of the Act of 1961 is the tenancy and not the ownership. When the revenue entries consistently showed the name of respondent No.1 as tenant from 1970-71 to 1974-75, that is on or before 01.03.1974, the Tribunal vide impugned Order dated 09.10.2012 has granted the occupancy certificate in favour of respondent No.1.

11. The learned Single Judge having considered the revenue entries and the evidence on record as well as the



impugned order passed by the Land Tribunal has come to the conclusion that the land in question was an agricultural land as on 01.03.1974 and respondent No.1 was tenant. Though ownership of the land changed in the year 1971, respondent No.1 remained the tenant of the agricultural land on *Wara* basis.

12. Having considered the order passed by the Land Tribunal and learned Single Judge, we find no error committed either by the Land Tribunal or by the learned Single Judge. Therefore, the writ appeal stands dismissed accordingly.

13. On the request of the counsel for the appellant, we direct the parties to maintain *status quo* in respect of the land in question for a period of four weeks.

**Sd/-
(D K SINGH)
JUDGE**

**Sd/-
(C.M. POONACHA)
JUDGE**